2292045 Recorded at Request of STATE ROAD COMMISSION JUN 18 1969 at 9:45 M Fee Paid $ NOFEE HAZEL TAGGART CHASE, Recorder Salt Lake County, Utah
By Dep. Date

BOOK 2764 PAGE 89

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FILED IN CLERK'S OFFICE
Salt Lake County Utah
JUN 2 1969
W. Sterling Evans, Clerk 3rd Dist. Court
By Duane C. Firth
Deputy Clerk

IN THE THIRD DISTRICT COURT IN AND FOR SALT LAKE COUNTY

STATE OF UTAH

- - - - - - - - - - - - -

STATE OF UTAH, by and through its ROAD COMMISSION,	:	
Plaintiff,	:	ORDER OF IMMEDIATE OCCUPANCY
-v-	:	Civil No. 185221
PORTLAND CEMENT COMPANY,	:	Project No. 1-80-3(39)125
Defendant.	:	Parcel Nos. 1:A, 2:A, 2, 2:E, 6:A, 6B:A, 6D, 7:A, 10:A, 10:E, 11:A
	- - - - - - - - - - - - -	

The plaintiff's motion for an order of immediate occupancy having come on regularly for hearing before the above entitled court on the 18th day of March, 1969, at the hour of 1:30 P. m., and it having been shown to the satisfaction of said court that notice of such motion has been given to the defendant above named in the manner prescribed by law; and the court having heard the evidence offered by the plaintiff in support of such motion and have determined that the plaintiff has the rights of eminent domain, and that the purpose for which the premises sought by the complaint herein to be condemned is a public purpose and that the immediate occupancy of said premises is necessary and proper,

NOW, THEREFORE, IT IS HEREBY ORDERED AND ADJUDGED that the plaintiff be and is hereby permitted and authorized to occupy the premises belonging to the defendant above named, which premises are sought for highway purposes or concerning which premises, easements or other rights for highway purposes are sought, all such property easements or other rights as required by the plaintiff herein, and the property belonging to the defendant as affected thereby

being particularly set out and described in the complaint on file in this action, and in the condemnation resolution filed in this action, a copy of which is hereby annexed, and the plaintiff is hereby permitted to take immediate possession of said properties of said defendant as required and as described and as set out in the plaintiff's complaint and to continue the possession of the same pending further hearing and trial on the issues that may be raised in this action and to do such work thereon as may be required for the purposes for which said premises are sought to be condemned and according to the nature thereof.

IT IS FURTHER ORDERED that during construction of the project and pending the hearing on the issues presented, the plaintiff shall protect any private drains now crossing the proposed highway right of way, and further, that prior to the destruction or removal of any fence on or along the property condemned, the plaintiff shall make adequate provisions for a fence along the highway right of way so as to provide fencing protection to the properties affected hereby at least equal to that now provided for each of such properties.

IT IS FURTHER ORDERED AND ADJUDGED that pending further hearing and trial on the issues that may be presented in this action, and subject to the conditions herein set forth, the defendant and itsagents, servants and employees be and they are hereby restrained and enjoined from hindering or interfering with plaintiff or any of the agents, employees or contractors of the plaintiff in the occupation of said premises required by plaintiff as particularly described and set forth in plaintiff's complaint, or in the doing of such work thereon as may be required for the purposes for which it is sought to condemn the said property, as set forth in said complaint.

This order shall not be effective until the plaintiff herein has deposited with the clerk of the court, for the use and benefit of the defendant parties in interest herein, a sum equal to 75 percent of the approved appraisal of the defendant's property to be acquired in this action.

IT IS FURTHER ORDERED that on receipt of said moneys, the clerk of this court is ordered to remit the same to the appropriate defendant in the percentage and ratio to which entitled.

IT IS FURTHER ORDERED that the granting of this Order of Immediate Occupancy neither impairs nor prejudices in any way defendant's right to periodically stop the flow of traffic in Parley's Canyon in the vicinity of its blasting activities and that it is not necessary or justifiable for plaintiff to acquire in fee Parcel 6D as described and set forth in the complaint. This reservation of right on behalf of the defendant is not to be construed or interpreted as an adjudication on the merits of defendants allegations.

Dated this 2nd day of June, 1969.

ATTEST
W. STERLING EVANS
CLERK

BY /s/ Duane C. Firth
Deputy Clerk

/s/ Bryant H. Croft
DISTRICT JUDGE
(Seal)

CO*125*1:A, 2, 2:A, 2:E, 6:A, 6B:A, 6D, 7:A, 10:A, 10:E, and 11:A

HIGHWAY PROJECT NO. I-80-3(39)125
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RECORDED OWNER: Portland Cement Company
ADDRESS: 615 West 8th South, Salt Lake City, Utah
LIEN HOLDER: None
Approved Appraisal $17,700.00
Amount to be tendered landowner at time
Order of Immediate Occupancy is granted $13,275.00

Parcel No. 80-3:1:A

Three parcels of land in fee for a freeway known as Project No. 80-3, being parts of an entire tract of property, in that portion of the Shale and Limestone Placer Mining Claim Survey No. 5031 which lie within the NW¼SE¼ and the S½NE¼ of Section 24, T. 1 S., R. 1 E., S.L.B.&M. The boundaries of said parcels of land are described as follows:

Beginning at the intersection of a west line of said Mining Claim Survey and the existing northwesterly limited-access line of highway known as Project No. I-97(17), said point being approximately 328 ft. east and 62 ft. north from the SW. corner of said NW¼SE¼; thence North 14 ft., more or less, along said west line to a point 145.0 ft. radially distant northwesterly from the center line of said Project No. 80-3; thence Northerly 282 ft., more or less, along the arc of a 1128.24-foot radius curve to the left to a point 145.0 ft. radially distant westerly from said center line at Engineer Station 350+68.38 (Note: Tangent to said curve at its point of beginning bears approximately N. 33°59' E.); thence Northerly 282.84 ft. along the arc of a spiral which is concentric with and 145.0 ft. radially distant westerly from a 300.0 ft. ten-chord spiral for a 4°30' curve to the left to a point on said northwesterly limited-access line approximately opposite Engineer Station 353+68.38 (Note: Tangent to said spiral at its point of beginning bears N. 19°39' E.); thence Southerly 588 ft., more or less, along said northwesterly limited-access line to the point of beginning, containing 0.15 acre, more or less.

ALSO:

Beginning at the intersection of an east line of said Mining Claim Survey and the existing southeasterly limited-access line of highway known as Project No. I-97(17), said point being approximately 1638 ft. west and 285 ft. south from the E¼ corner of said Section 24; thence South 105 ft., more or less, along said east line to a point 170.0 ft. radially distant southeasterly from the center line of said Project No. 80-3 at Engineer Station 358+70; thence Southwesterly 195 ft., more or less, along a straight line to a point approximately 135 ft. radially distant southeasterly from said center line at Engineer Station 356+61; thence Northerly 280 ft., more or less, along said southeasterly limited-access line to the point of beginning, containing 0.15 acre, more or less.

ALSO:

Beginning on the existing northerly limited-access line of highway known as Project No. I-97(17) at a point approximately 165 ft. radially distant northerly from the center line of said Project No. 80-3, said point being approximately 843 ft. west and 537 ft. north from the E¼ corner of said Section 24; thence Southwesterly 1223 ft., more or less, along said existing northerly limited-access line to a point approximately 180 ft. radially distant northwesterly from said center line at Engineer Station 359+90; thence N. 46°25' E. 406 ft., more or less, to a point 150.0 ft. radially distant northwesterly from said center line at Engineer Station 363+50; thence N. 59°18' E. 721.68 ft. to a point 200.0 ft. radially distant northwesterly from said center line at Engineer Station 370+13.20; thence Easterly 110 ft., more or less, along a straight line to the point of beginning, containing 0.64 acre, more or less. The above described parcels of land contain 0.94 acre, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tracts of property by reason of the location thereof with reference to said freeway, including, without limiting the foregoing, all rights of ingress to or egress from said remaining portions, contiguous to the lands hereby conveyed, to or from said freeway.

Continued on Page 3

CO-125-1:A, 2, 2:A, 2:E,
6:A, 6B:A, 6D, 7:A, 10:A,
10:E, and 11:A

Parcel No. 80-3:2:A

Three parcels of land in fee for a freeway known as Project No. 80-3, being parts of an entire tract of property.

One parcel is situated in a portion of the Compromise Placer Mining Claim No. 3788 and in the Portland Cement Company Nos. 1 and 2 Placer Mining Claims Survey No. 4629 of Section 19, also the SE¼SW¼, SW¼SE¼ of Section 18, T. 1 S., R. 2 E., S.L.B.&M. The boundaries of said parcel of land are described as follows:

Beginning on the existing southeasterly limited access line of Highway Project No. I-97(17) at a point approximately 140 ft. radially distant southeasterly from Engineer Station 382+30 of said Project No. 80-3, said point is further identified as being approximately 870 ft. north and 257 ft. east from the W¼ corner of said Section 19; thence Northeasterly 188 ft., more or less, along a straight line to a point 185.0 ft. perpendicularly distant southeasterly from Engineer Station 384+10 of said Project No. 80-3; thence N. 47°47' E. 700.65 ft. to a point 215.0 ft. perpendicularly distant southeasterly from Engineer Station 391+10; thence N. 45°20' E. 517.67 ft.; thence N. 43°59' E. 513.72 ft. to a point 140.0 ft. radially distant southeasterly from Engineer Station 401+93.60; thence N. 71°52' E. 603.39 ft. to a point 175.0 ft. radially distant southeasterly from Engineer Station 407+93.60; thence N. 53°02' E. 345.57 ft. to a point 150.0 ft. radially distant southeasterly from Engineer Station 411+00; thence N. 39°56' E. 768.03 ft. to a point 140.0 ft. radially distant southeasterly from Engineer Station 418+51.38; thence N. 53°48' E. 433.62 ft. to a point 135.0 ft. radially distant southeasterly from Engineer Station 423+40; thence S. 25°53' E. 44.44 ft. to a point 70.0 ft. perpendicularly distant southwesterly from the "X" Line of said project opposite Engineer Station 42+03.17; thence Southwesterly 95 ft., more or less, along a straight line to a southwest corner of said entire tract; thence Easterly 40.0 ft. along a southerly boundary line of said entire tract to a point designated as Point "A"; thence continuing easterly 100.0 ft. along said southerly boundary line to a point designated as Point "B"; thence Easterly 60.0 ft. along said line to a point approximately 41 ft. radially distant southeasterly from the center line of the "V" Line of said project opposite Engineer Station 10+68±; thence Northeasterly 465 ft., more or less, along a straight line to a point 125.0 ft. radially distant southerly from the center line of said project opposite Engineer Station 428+95.45; thence Easterly 130 ft., more or less, along the arc of a 2671.48-foot radius curve to the left to the easterly line of said SW¼SE¼ (Note: Tangent to said curve at its point of beginning bears N. 70°11' E.); thence Northerly 83 ft., more or less, along said easterly line to said existing southeasterly limited-access line; thence Southwesterly 4784 ft., more or less, along said existing southeasterly limited-access line to the point of beginning, containing 7.44 acres, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, and with all abutters rights of access in and to the inner through traffic lanes of said freeway, PROVIDED, however, that such remaining property shall abut upon and have access to a service road leading to and from a frontage road which will be connected with said inner through traffic lanes only at such points as may be established by public authority.

ALSO:

A parcel of land in fee situated in the NE¼SE¼ of Section 18, T. 1 S., R. 2 E., S.L.B.&M. and described as follows:

Beginning at the intersection of the existing southeasterly limited-access line of highway known as Project No. I-97(17) and the southerly line of said NE¼SE¼, said point is approximately 698 ft. west of the SE. corner of said NE¼SE¼; thence Easterly 88 ft., more or less, along said southerly line to a point 125.0 ft. radially distant southeasterly from the center line of said Highway Project No. 80-3; thence Northeasterly 310 ft., more or less, along the arc of a 2671.48-foot radius curve to the left to a point of curve to spiral opposite Engineer

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CO*125*1:A, 2, 2:A, 2:E
6:A, 6B:A, 6D, 7:A, 10:A,
10:E, and 11:A

HIGHWAY PROJECT NO. I-80-3(39)125
PAGE 4

Station 439+07.30 (Note: Tangent to said curve at its point of beginning bears approximately N. 54°06' E.); thence Northeasterly 92 ft., more or less, along the arc of a spiral to the left which is concentric with and 125.0 ft. radially distant southeasterly from a 200-foot ten-chord spiral for a 2°15' curve to said existing southeasterly limited-access line at a point approximately opposite Engineer Station 440+00; thence Southwesterly 475 ft., more or less, along said existing southeasterly limited-access line to the point of beginning, containing 0.29 acre, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, including, without limiting the foregoing, all rights of ingress to or egress from said remaining portion, contiguous to the lands hereby conveyed, to or from said freeway.

ALSO:

A parcel of land in fee situated in a portion of the Compromise Placer Mining Claim No. 3788 and in the Portland Cement Company No. 2 Placer Mining Claims Survey No. 4629 of Section 19, T. 1 S., R. 2 E., S.L.B.&M. The boundaries of said parcel of land are described as follows:

Beginning on the existing northwesterly limited-access line of a highway known as Project No. I-97(17) at a point which is 72.0 ft. perpendicularly distant northwesterly from the "V" Line Engineer Station 10+85.47 of Project No. 80-3, said point also being approximately 1,952 ft. north and 948 ft. east from the W¼ corner of said Section 19; thence N. 41° 49' E. 552.97 ft. to a point 57.0 ft. radially distant northerly from "V" line Engineer Station 16+22; thence S. 78° 16' E. 107.74 ft. to the existing northwesterly limited access line of said Project No. I-97(17); thence S. 57° 46' W. 288.36 ft. to a point 28.73 ft. perpendicularly distant northwesterly from said "V" line of said Project No. 80-3 opposite Engineer Station 14+24.37; thence S. 44° 15' W. 330.02 ft. to the point of beginning containing 0.34 acre, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, and with all abutters rights of access in and to the inner through traffic lanes of said freeway, PROVIDED, however, that such remaining property shall abut upon and have access to a frontage road which will be connected with said inner through traffic lanes only at such points as may be established by public authority.

The total acreage of the above described three parcels of land is 8.07 acres, more or less.

Parcel No. 80-3:2

A parcel of land in fee for a dozer trail incident to the construction of a freeway known as Project No. 80-3, being part of an entire tract of property, in the SW¼SE¼ of Section 18, T. 1 S., R. 2 E., S.L.B. & M. The boundaries of said parcel of land are described as follows:

Beginning on the southeasterly highway right of way and no-access line of said project at a point 125.0 ft. radially distant southeasterly from the center line of said project opposite Engineer Station 428+95.45, said point also being approximately 961 ft. north and 1,148 ft. east of the S¼ corner of said Section 18; thence Southwesterly 465 ft., more or less, along a straight line to a south boundary line of said entire tract at a point approximately 41 ft. radially distant southeasterly from the center line of the "V" line of said project opposite Engineer Station 10+68±; thence Easterly 160.0 ft. along the south boundary line of said entire tract; thence Northeasterly 285 ft., more or less, along a straight line to a point 290.0 ft. radially distant southeasterly from the center line of said project opposite Engineer Station 428+95.45; thence Easterly 70 ft., more or less, along the arc of a 2,836.48-foot radius curve to the left to the easterly line of said SW¼SE¼ (Note: Tangent to said curve at its point of beginning

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CO:*125*1:A, 2, 2:A, 2:E, 6:A, 6B:A, 6D, 7:A, 10:A, 10:E, and 11:A

bears N. 70°11' E.); thence Northerly 172 ft., more or less, along the easterly line of said SW¼SE¼ to the southeasterly no-access line of said project at a point 125.0 ft. radially distant southeasterly from the center line of said project approximately opposite Engineer Station 430+19; thence Westerly 130 ft., more or less, along the arc of a 2,671.48-foot radius curve to the right to the point of beginning (Note: Tangent to said curve at its point of beginning bears approximately S. 67°24' W.). The above described parcel of land contains 1.46 acres, more or less.

Parcel No. 80-3:2:E

An easement upon part of an entire tract of property in Placer Mining Claim No. 3788 of Section 19, T. 1 S., R. 2 E., S.L.B.&M., in Salt Lake County, Utah for the purpose of constructing and maintaining thereon cut slopes and appurtenant parts thereof incident to the construction of a freeway known as Project No. 80-3.

Said part of an entire tract is a parcel of land described as follows:

Beginning on the northwesterly right of way and no-access line of said project at a point approximately 160 ft. radially distant northwesterly from center line Engineer Station 381+61.35, said point also being approximately 1040 ft. north and approximately 2 ft. east from the west quarter corner of said Section 19; thence Northeasterly 148 ft., more or less, along a straight line to a point 195.00 ft. radially distant northwesterly from the center line of said project opposite Engineer Station 383+00; thence Easterly 80 ft., more or less, along a straight line to a point on the existing northwesterly right of way and no-access line of said project opposite Engineer's Station 383+73; thence Southwesterly 208 ft., more or less, along said existing northwesterly right of way and no-access line to the point of beginning. The above described parcel of land contains 0.09 acre, more or less.

Parcel No. 80-3:6:A

Three parcels of land in fee for a freeway known as Project No. 80-3, being parts of an entire tract of property, in the SW¼NE¼ and the NW¼SE¼ of Section 17, T. 1 S., R. 2 E., S.L.B.&M. The boundaries of said parcels of land are described as follows:

Beginning on the existing northwesterly limited-access line of a highway known as Project No. I-97(17) and the west line of said SW¼NE¼ at a point approximately 115 ft. radially distant northwesterly from the center line of Highway Project No. 80-3, said point also being approximately 145 ft. north of the center of said Section 17; thence Northerly 100 ft., more or less, along said west line to a point 205.0 ft. radially distant northwesterly from the center line of said Project 80-3; thence Northeasterly 231 ft., more or less, along the arc of a 1068.24-foot radius curve to the left to a point on the westerly right of way line of the D.&R.G.W. R.R. (Park City Branch, Abandoned) said point being 205.0 ft. radially distant northwesterly from the center line of said project (Note: Tangent to said curve at its point of beginning bears approximately N. 68°06' E.); thence Southerly 107 ft., more or less, along said westerly railroad right of way line to a point on the existing northwesterly limited-access line of said Project No. I-97(17); thence Southwesterly 214 ft., more or less, along said existing northwesterly limited-access line to the point of beginning, containing 0.45 acre, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, including, without limiting the foregoing, all rights of ingress to or egress from said remaining portion, contiguous to the lands hereby conveyed, to or from said freeway.

ALSO:

Beginning on the existing southeasterly limited-access line of a highway known as Project No. I-97(17) at a point approximately 180 ft. radially distant southeasterly from Engineer Station 474+10 of Highway Project No. 80-3, said point

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CO*125*1:A, 2, 2:A, 2:E,
6:A, 6B:A, 6D, 7:A, 10:A,
10:E, and 11:A

also being approximately 340 ft. east and 18 ft. south from the center of said Section 17; thence Easterly 107 ft., more or less, along a straight line to a point 200.0 ft. radially distant southeasterly opposite Engineer Station 475+00; thence Northeasterly 139 ft., more or less, along a straight line to the existing southeasterly limited-access line of said Project No. I-97(17) at a point approximately 168 ft. radially distant southeasterly from Engineer Station 476+20 of Project 80-3; thence Southwesterly 236 ft., more or less, along said existing southeasterly limited-access line to the point of beginning, containing 0.07 acre, more or less.

ALSO:

Beginning on the existing southeasterly limited-access line of highway known as Project No. I-97(17) at a point approximately 165 ft. radially distant southeasterly from Engineer Station 480+10 of Highway Project No. 80-3, said point also being approximately 812 ft. east and 450 ft. north of the center of said Section 17; thence Northeasterly 168 ft., more or less, along a straight line to a point 195.0 ft. radially distant southeasterly from Engineer Station 481+60.27 of Highway Project 80-3; thence N. 30°48' E. 404.40 ft. to a point 150.0 ft. radially distant southeasterly from Engineer Station 486+01.01; thence N. 44°15' E. 284.88 ft. to a point 120.0 ft. perpendicularly distant southeasterly from Engineer Station 489+01.01; thence Northeasterly 22 ft., more or less, along the arc of a spiral to the left which is concentric with and 120.0 ft. radially distant southeasterly from a 300-foot ten-chord spiral for a 4°30' curve to the east line of said SW¼NE¼ (Note: Tangent to said spiral at its point of beginning bears N. 52°28' E.); thence Northerly 55 ft., more or less, along said east line to the existing southeasterly limited-access line of said Highway Project No. I-97(17); thence Southwesterly 940 ft., more or less, along said existing southeasterly limited-access line to the point of beginning, containing 0.72 acre, more or less. The above described parcels of land contain 1.24 acres, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, and with all abutters rights of access in and to the inner through traffic lanes of said freeway, PROVIDED, however, that such remaining property shall abut upon and have access to a dozer trail which will be connected with said inner through traffic lanes only at such points as may be established by public authority.

Parcel No. 80-3:6B:A

CLOSE AN EXISTING ACCESS OPENING, as granted in that certain Quit Claim Deed recorded as Entry No. 1434208, in Book 1213, Page 256 in the office of the Salt Lake County Recorder, Utah as follows, to-wit:

The one 20.0-foot access opening in the Southeasterly limited-access line of an expressway known as Project No. I-97(17) opposite Engineer Station 397+00 is to be closed, and

GRANT ALTERNATE ACCESS to the nearest roadway of highway known as Project No. 80-3 to or from the contiguous property of the owner over a dozer trail which will be connected with inner through traffic lanes of said 80-3 only at such points as may be established by public authority.

Parcel No. 80-3:6D

A parcel of land in fee for a dozer trail incident to the construction of a freeway known as Project No. 80-3, being part of an entire tract of property, in the SW¼NE¼ of Section 17, T. 1 S., R. 2 E., S.L.B.&M. The boundaries of said parcel of land are described as follows:

Beginning on the southeasterly right of way and no-access line of said project at a point 175.55 ft. radially distant southeasterly from center line Engineer Station 484+60.27, said point also being 1,817.01 ft. south and 1,621.99 ft. west from the northeast corner of said Section 17; thence S. 50°37' E. 139.45 ft. to a point 315.0 ft. radially distant southeasterly from Engineer Station 484+60.27; thence Northeasterly 105.92 ft. along the arc of a 958.24-foot radius curve to the right to a point of curve to spiral opposite Engineer Station 486+01.01 (Note:

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Tangent to said curve at its point of beginning bears N. 39°23' E.); thence Northeasterly 133 ft., more or less, along the arc of a spiral to the right which is concentric with and 315.0 ft. radially distant southeasterly from a 300-foot ten-chord spiral for a 4°30' curve, to the east line of said SW¼NE¼; thence Northerly 248 ft., more or less, along said east line to the southeasterly no-access line of said project, said point also being 120.0 ft. radially distant southeasterly from the center line of said project approximately opposite Engineer Station 489+22; thence Southwesterly 22 ft., more or less, along the arc of a spiral to the right which is concentric with and 120.0 ft. radially distant southeasterly from a 300-foot ten-chord spiral for a 4°30' curve to a point of reverse spiral opposite Engineer Station 489+01.01 (Note: Tangent to said spiral at its point of beginning bears approximately S. 52°26' W.); thence S. 44°15' W. 284.88 ft. to a point 150.0 ft. radially distant southeasterly from Engineer Station 486+01.01; thence S. 30°48' W. 125.31 ft. to the point of beginning. The above described parcel of land contains 1.28 acres, more or less.

Parcel No. 80-3:7:A

A parcel of land in fee for a frontage road incident to the construction of a freeway known as Project No. 80-3, being part of an entire tract of property, in the NE¼NE¼ of Section 17 and the SE¼SE¼ of Section 8, T. 1 S., R. 2 E., S.L.B.&M. The boundaries of said parcel of land are described as follows:

Beginning on the existing northwesterly limited-access line of highway known as Project No. I-97(17) at a point approximately 145 ft. radially distant northwesterly from the center line of the "B" Ramp of Highway Project No. 80-3 at approximate Engineer Station 14+70, said point is further identified as being approximately 1145 ft. west and 730 ft. south from the northeast corner of said Section 17; thence Northeasterly 200 ft., more or less, along a straight line to a point 120.0 ft. radially distant northwesterly from "B" Ramp Engineer Station 17+01.29; thence N. 0°39' E. 303.78 ft. to a point 55.0 ft. perpendicularly distant northwesterly from the "S" Line of Project 80-3 opposite Engineer Station 11+75; thence N. 29°25' E. 165.17 ft. to a point 45.0 ft. perpendicularly distant northwesterly from "S" Line Engineer Station 13+24.50; thence S. 53°00' E. 57.0 ft. to a point 12.0 ft. perpendicularly distant southeasterly from said "S" Line Engineer Station 13+24.50; thence N. 20°10' E. 68.40 ft. to a point 140.0 ft. radially distant northwesterly from said "B" Ramp Engineer Station 21+55; thence Northeasterly 193 ft., more or less, along a straight line to a point on the existing northwesterly limited-access line of Project I-97(17), said point being approximately 125 ft. radially distant northwesterly from said "B" Ramp Engineer Station 23+30; thence Southerly 300 ft., more or less, along said existing northwesterly limited-access line to the northwesterly right of way line of the D.&R.G.W. Railroad (Park City Branch, Abandoned); thence Southwesterly 452 ft., more or less, along said northwesterly railroad right of way line to the existing northwesterly limited-access line of Project I-97(17); thence Southwesterly 182 ft., more or less, along said existing limited-access line to the point of beginning. The above described parcel of land contains 1.53 acres, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, and with all abutters rights of access in and to the inner through traffic lanes of said freeway, PROVIDED, however, that such remaining property shall abut upon and have access to a frontage road which will be connected with said inner through traffic lanes only at such points as may be established by public authority.

Parcel No. 80-3:10:A

A parcel of land in fee for a freeway known as Project No. 80-3, being part of an entire tract of property, in the SW¼SW¼ of Section 9, T. 1 S., R. 2 E., S.L.B.&M. The boundaries of said parcel of land are described as follows:

Beginning on a westerly line of said entire tract at a point 160.0 ft. perpendicularly distant southerly from the center line of said project, said point also being approximately 500 ft. east and 457 ft. north from the SW. corner of said Section 9; thence N. 83°32' E. 14 ft., more or less, to a point opposite Engineer Station 519+00; thence N. 77°49' E. 100.50 ft. to a point

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CO*125*1:A, 2, 2:A, 2:E
6:A, 6B:A, 6D, 7:A, 10:A,
10:E, and 11:A

150.0 ft. perpendicularly distant southerly from said center line at Engineer Station 520+00; thence N. 83°32' E. 829.37 ft. to a point opposite Engineer Station 528+29.37 Back, which equals Engineer Station 530+00 Ahead; thence N. 6°28' W. 14 ft., more or less, to the existing southerly limited-access line of a highway known as Project No. I-97(17); thence Westerly 948 ft., more or less, along said existing southerly limited-access line to a westerly line of said entire tract; thence Southerly 12 ft., more or less, along said westerly line to the point of beginning. The above described parcel of land contains 0.22 acre, more or less.

Together with any and all rights or easements appurtenant to the remaining portion of said entire tract of property by reason of the location thereof with reference to said freeway, including, without limiting the foregoing, all rights of ingress to or egress from said remaining portion, contiguous to the lands hereby conveyed, to or from said freeway.

Parcel No. 80-3:10:E

An easement upon part of an entire tract of property in the S½SW¼ of Section 9, T. 1 S., R. 2 E., S.L.B.&M., in Salt Lake County, Utah, for the purpose of constructing and maintaining thereon cut and/or fill slopes and appurtenant parts thereof incident to the construction of a freeway known as Project No. 80-3.

Said part of an entire tract is described as follows:

Beginning on the southerly no-access line of said project at a point 160.00 ft. perpendicularly distant southerly from center line Engineer Station 519+00, said point also being approximately 458 ft. north and approximately 514 ft. east from the SW. corner of said Section 9; thence S. 78°01'55" E. 189.74 ft.; thence S. 46°16'19" E. 156.21 ft.; thence S. 66°15'35" E. 171.18 ft. to a point 425.00 ft. perpendicularly distant southerly from the center line of said project opposite Engineer Station 523+18; thence N. 16°49'04" E. 93.76 ft.; thence N. 7°06'12" E. 149.17 ft. to a point 195.00 ft. perpendicularly distant southerly from center line Engineer Station 524+00; thence N. 77°49'22" E. 301.50 ft.; thence N. 76°55'13" E. 130.23 ft. to a point 150.00 ft. perpendicularly distant southerly from center line Engineer Station 528+29.37; thence S. 83°32' W. 829.37 ft.; thence S. 77°49'22" W. 100.50 ft. to the point of beginning. The above described parcel of land contains 1.78 acres, more or less.

Parcel No. 80-3:11:A

CLOSE AN EXISTING ACCESS OPENING, as granted in that certain Quit Claim Deed recorded as Entry No. 1434210, in Book 1213, Page 260 in the office of the Salt Lake County Recorder, Utah as follows, to-wit:

The 20.0-foot access opening in the northerly limited-access line of an expressway known as Project No. I-97(17) opposite Engineer Station 344+00 is to be closed, and

GRANT ALTERNATE ACCESS to the nearest roadway of highway known as Project No. 80-3, to or from the contiguous property of the owner, over a frontage road which will be connected with inner through traffic lanes of said 80-3 only at such points as may be established by public authority.

Prepared by Welch, 2-18-69

STATE OF UTAH
COUNTY OF SALT LAKE } SS

I, THE UNDERSIGNED, CLERK OF THE DISTRICT COURT OF SALT LAKE COUNTY, UTAH, DO HEREBY CERTIFY THAT THE ANNEXED AND FOREGOING IS A TRUE AND FULL COPY OF AN ORIGINAL DOCUMENT ON FILE IN MY OFFICE AS SUCH CLERK.

WITNESS MY HAND AND SEAL OF SAID COURT THIS 2 DAY OF June 1969

W. STERLING EVANS, CLERK

BY [signature] DEPUTY